



CHAPTER 31.

An Act to amend the enactments relating to Customs A.D. 1915.
during the present war. [16th March 1915.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1.—(1) Where any goods are prohibited either to be exported or carried coastwise, or any goods are prohibited to be exported to any named country or place, it shall not be lawful for any person to ship as stores on any vessel any of the goods to which the prohibition extends, except such quantity of any of those goods as may be allowed to be so shipped by the proper officer of Customs and Excise as being reasonably required to be shipped at the port of departure for use on board the vessel during the voyage on which it is about to depart.

Provision with respect to shipment as stores of prohibited or restricted goods.

(2) If any person ships as stores any goods, or brings any goods to any quay or other place with intent to ship the same as stores, in contravention of this section, the goods shall be forfeited and he shall for each offence be liable to a penalty of one hundred pounds.

2. The power of the Commissioners of Customs and Excise under section one hundred and thirty-nine of the Customs Consolidation Act, 1876, by order to require due entry and clearance before shipment shall apply to goods intended for shipment as stores on any ship being goods subject to any prohibition or restriction outwards, as it applies to goods intended for exportation or carriage coastwise.

Pre-entry of ship's stores. 39 & 40 Vict. c. 36.

3. Where the master of any coasting ship has rendered himself liable to a penalty under section six of the Customs and Inland Revenue Act, 1878, by departing without due clearance of his ship, the Commissioners of Customs and Excise may, for the purpose of enforcing the said penalty, require the deposit in

Provision as to coasting ships departing without clearance. 41 & 42 Vict. c. 42.

A.D. 1915. the hands of the collector of Customs and Excise at any port where the ship is found of such sum not exceeding one hundred pounds as they think fit and in default of payment of the sum so required to be deposited the ship may be detained.

Provision as to
exportation of
goods under
licence.

4. Where a licence to export any goods, being goods subject to any prohibition or restriction outwards, authorises the exportation thereof to a particular person or place or to a particular person at a particular place named in the licence, the name of the person or place, or both, as the case may be, shall be inserted in all invoices, bills of lading, manifests and other documents relating to the goods, and if this requirement is not complied with as respects any document the person by whom or on whose behalf the document is made out shall, if he is the exporter of the goods, be deemed to have exported the goods without a licence, and, if any other person, be liable to a penalty of one hundred pounds.

Provisions as to
declarations as
to ultimate
destination of
exported
goods.

5.—(1) Where in pursuance of any order made by the Commissioners of Customs and Excise under section one hundred and thirty-nine of the Customs Consolidation Act, 1876, a person in the course of making entry before shipment makes a declaration as to the ultimate destination of any goods then, unless security has been given by bond, the exporter shall, if so required by the Commissioners of Customs and Excise, produce evidence to their satisfaction that those goods have not reached a destination in any territory which, under any Proclamation issued by His Majesty dealing with trading with the enemy for the time being in force, is or is treated as enemy country, and if he fails to do so he shall be liable to a penalty of treble the value of the goods or one hundred pounds at the election of the Commissioners, unless he proves that they reached such destination without his consent or connivance, and that he took all reasonable steps to secure that the ultimate destination of the goods should be the destination mentioned in the declaration.

(2) If the Commissioners of Customs and Excise have reason to suspect that any such declaration as aforesaid is false in any material particular, the goods may be detained until the Commissioners are satisfied as to the truth of the declaration, and, failing such satisfaction, may be treated as if they were goods subject to a prohibition or restriction outwards.

Power to seize
imported goods
of enemy
origin.

6. Where the Commissioners of Customs and Excise have reason to suspect that the country of origin of any goods imported into the United Kingdom is an enemy country within the meaning of the last preceding section, the goods may be seized as though they were goods enumerated and described in the table of prohibitions and restrictions inwards contained in section forty-two of the Customs Consolidation Act, 1876, and in any proceedings for the forfeiture and condemnation thereof the country of origin of such goods shall be deemed to be such an enemy country unless the contrary is proved.

7.—(1) This Act may be cited as the Customs (War Powers) Act, 1915, and shall be construed together with the Customs Consolidation Act, 1876, and any enactments amending that Act. Short title, construction, and duration.

(2) This Act shall continue in force only during the continuance of the present war.

Printed by EYRE and SPOTTISWOODE, LTD.,

FOR

FREDERICK ATTERBURY, Esq., C.B., the King's Printer of Acts of Parliament.